

At Individual Assignment Part 55 of the Supreme Court of the State of New York, held in and for the County of New York, City and State of New York, at the courthouse located at 71 Thomas Street, New York, New York, on the 11th day of February, 2025.

PRESENT: HONORABLE JUSTICE d'Auguste

THE CITY OF NEW YORK,

Plaintiff,

-against-

THE LAND AND BUILDING KNOWN AS 512 WEST 42nd STREET, also known as 510 WEST 42nd STREET, TAX BLOCK #1070, TAX LOT #20, COUNTY OF NEW YORK, CITY and STATE of NEW YORK; WEST 42nd STREET DEVELOPERS, LLC; BABY'S WEST 42 LLC; "JOHN DOE" and "JANE DOE," fictitiously named parties, true names unknown, the intended being the owners, lessees, operators or occupants of the commercial premises operating within the basement, ground floor and second floor of the building at 512 West 42nd Street, New York, New York; and any person claiming any right, title or interest in the real property which is the subject of this action,

Defendants.

ORDER

INDEX NUMBER 450551/2025

Plaintiff, having brought a special proceeding pursuant to New York City Administrative Code Chapter 7 against defendants, and a motion for a preliminary injunction pursuant to New York City Administrative Code §7-707(a), having been made to this court upon the affirmation of Evan Gluck, Esq., dated January 28, 2025, for an Order granting plaintiff a preliminary injunction, temporary restraining orders and a temporary closing order against the defendants in this action and

due notice of motion having been given, and the matter having duly come on to be heard before Hon. James d'Auguste, one of the Justices of this Court, at IAS part 55 thereof, held at 71 Thomas Street, New York, New York, and upon the reading and filing of the Affirmation of Sergeant Jason Castillo, dated December 20, 2024; and the Affirmation of Lieutenant John Core, dated December 19, 2024; together with the exhibits; and the Summons and Verified Complaint, verified by Marquis R. Bradshaw, Esq., on January 24, 2025, with proof of service,

NOW on the motion of Evan Gluck, Esq., attorney for the Plaintiff, herein, it is hereby

(1) ORDERED, ADJUDGED AND DECREED that the matter is adjourned to 10:00am on April 2, 2025;

(2) ORDERED, ADJUDGED AND DECREED THAT the temporary injunction against the use of the subject premises for the unlicensed sale and on-premises consumption of alcoholic beverages or other unlawful activity described in Section 123 of the New York State Alcoholic Beverage Control Law, which was ordered by this court on January 29, 2025, shall remain in place pending the next appearance on April 2, 2025:

(2) ORDERED, ADJUDGED AND DECREED that at least until the adjournment date on April 2, 2025; defendants JOHN DOE and/or JANE DOE, the tenant(s)/operator(s) of the subject premises, their agents, employees, and/or representatives, and any and all persons acting individually or in concert with them are enjoined from the use and/or occupancy of the basement, ground floor and second floor of the building at 512 West 42nd Street, New York, New York (the "subject premises"); and it is further

(3) ORDERED, ADJUDGED AND DECREED that while the closing order in paragraph two (2) of this order is in effect, defendants JOHN DOE and/or JANE DOE, the tenant(s)/operator(s)/occupant(s) of the subject premises, WEST 42nd STREET DEVELOPERS,

LLC, the landlord of the subject premises, non-party 42nd Street Holdings LLC, the net-lessee of the subject premises, as well as their agents, employees, contractors, and/or representatives may enter and occupy the subject premises only for the purpose of conducting inspections of the subject premises, as well as making repairs and/or modifications to the subject premises; and it is further

(4) ORDERED, ADJUDGED AND DECREED that if JOHN DOE and/or JANE DOE the tenant(s)/operator(s) of the subject premises, WEST 42nd STREET DEVELOPERS, LLC, the landlord of the subject premises, non-party 42nd Street Holdings LLC, the net-lessee of the subject premises, and/or their agents, employees, contractors, and/or representatives will access the subject premises pursuant to paragraph three (3) of this order, it shall only be between the hours of 9:00 a.m. and 6:00 p.m., Monday through Friday; and it is further

(5) ORDERED, ADJUGED AND DECREED that intentional disobedience or resistance to paragraph two (2) and/or (3) of this order will be considered a violation of Section 7-711(f) of the Administrative Code; and it is further

(6) ORDERED, ADJUDGED AND DECREED that that the New York City Police Department shall take all reasonable steps necessary to effectuate this Order, which includes placement of closing order notice(s) pursuant to Section 7-711(e) of the Administrative Code; and it is further

(7) ORDERED, ADJUDGED AND DECREED that in the event there is a violation of any provision of this Order, plaintiff may file documentation regarding such violation with this Court. Upon a judicial determination that a violation occurred, paragraph three (3) of this order will be revoked; and it is further

(8) ORDERED, ADJUDGED AND DECREED that service of a copy of this Order be made upon defendants personally pursuant to CPLR Section 308(1); or by leaving a copy thereof with a

person of suitable age and discretion at the subject premises pursuant to CPLR Section 308(2) on or before the 14th of February, 2025; and that this be deemed good and sufficient service on defendants, provided however, that if service is not made personally or to a person of suitable age and discretion, a copy of the papers will be posted at the subject premises and subsequently mailed to each defendant at his or her last known address by the overnight mail on or before the 18th day of February, 2025;. Any defendants represented by an attorney can also be served by the Order being delivered to said attorneys by electronic means on or before the 14th day of February, 2025.

E N T E R



Hon. James E. d'Auguste, J.S.C.